

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ANGEL GARCIA-RIVERA,

Plaintiff,

-against-

POLICE OFFICER MICHAEL MENDEZ, Shield No. 7126, POLICE OFFICER ROBERT GOULD, POLICE OFFICER WILLIAM DOOLEY, Shield No. 12614, SERGEANT VINCENT RODRIGUEZ, SERGEANT JOHN TOSCANO, and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 13, 2018

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER MICHAEL MENDEZ, Shield No. 7126, 25th Precinct, 120 E 119th St, New York, NY 10035
SERGEANT VINCENT RODRIGUEZ, 25th Precinct, 120 E 119th St, New York, NY 10035
SERGEANT JOHN TOSCANO, Criminal Intelligence Section, One Police Plaza, Room 1108, New York, NY 10038
POLICE OFFICER ROBERT GOULD, 25th Precinct, 120 E 119th St, New York, NY 10035
DETECTIVE WILLIAM DOOLEY, Shield No. 12614, 25th Precinct, 120 E 119th St, New York, NY 10035

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ANGEL GARCIA-RIVERA, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 23, 2016, at approximately 3:00 p.m., plaintiff Angel Garcia-Rivera was lawfully inside of his apartment located at 1978 Madison Avenue, Apt. G2, New York, New York, when defendants unlawfully and forcibly entered his apartment without a valid or legally obtained search warrant, unlawfully searched plaintiff and his apartment, damaged property in plaintiff's apartment, unlawfully seized plaintiff, and falsely arrested plaintiff without probable cause or legal justification. The defendants transported plaintiff against his will to the 25th precinct where he was unlawfully photographed, fingerprinted, and placed in a holding cell. Plaintiff was denied the right to due process and right to a fair trial and maliciously prosecuted by the defendant officers until all charges against plaintiff were dismissed and sealed in their entirety on January 18, 2017. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, denied him the right to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff ANGEL GARCIA-RIVERA is and was at all times relevant herein a resident of the State of New York.

3. Defendant POLICE OFFICER MICHAEL MENDEZ, Shield No. 7126, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER MICHAEL MENDEZ, Shield No. 7126, is and was at all times relevant herein, assigned to the 25th Precinct.

5. Defendant POLICE OFFICER MICHAEL MENDEZ, Shield No. 7126, is being sued in his individual and official capacity.

6. Defendant SERGEANT VINCENT RODRIGUEZ is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant SERGEANT VINCENT RODRIGUEZ is and was at all times relevant herein, assigned to the 25th Precinct.

8. Defendant SERGEANT VINCENT RODRIGUEZ is being sued in his individual and official capacity.

9. Defendant SERGEANT JOHN TOSCANO is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant SERGEANT JOHN TOSCANO is and was at all times relevant herein, assigned to the Criminal Intelligence Section.

11. Defendant SERGEANT JOHN TOSCANO is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER ROBERT GOULD is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER ROBERT GOULD is and was at all times relevant herein, assigned to the 25th Precinct.

14. Defendant POLICE OFFICER ROBERT GOULD is being sued in his individual and official capacity.

15. Defendant DETECTIVE WILLIAM DOOLEY, Shield No. 12614, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant DETECTIVE WILLIAM DOOLEY, Shield No. 12614, is and was at all times relevant herein, assigned to the 25th Precinct.

17. Defendant DETECTIVE WILLIAM DOOLEY, Shield No. 12614, is being sued in his individual and official capacity.

18. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does #1-10 are being sued in his individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. At all times relevant hereto, The City of New York, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

22. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

23. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

24. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

25. On June 23, 2016, at approximately 3:00 p.m., plaintiff was lawfully present inside of his apartment located at 1978 Madison Avenue, Apt. G2, New York, New York, when the defendant police officers unlawfully entered the apartment without a valid or legally obtained warrant and unlawfully searched the apartment and the individuals present.

26. At no time relevant herein did the defendant police officers recover any drugs, weapons or other contraband from plaintiff or from plaintiff's possession, custody or control.

27. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers have probable cause or legal justification to accuse plaintiff of committing any crime or violating the law in any way.

28. Nevertheless, plaintiff was falsely arrested and unlawfully handcuffed and transported to the 25th Precinct against his will where he was photographed, fingerprinted, and placed in a holding cell.

29. On June 24, 2016 at approximately 8:00 p.m., after approximately 29 hours in unlawful custody, plaintiff was transported to New York County Central Booking and placed in a holding cell.

30. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

31. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

32. On June 24, 2016 at approximately 10:00 pm, after approximately 31 hours in unlawful custody, plaintiff was arraigned in New York County Criminal Court, charged with crimes he did not commit and for which the defendant police officers lacked probable cause or legal justification to accuse him of committing, and released on his own recognizance.

33. Plaintiff was unlawfully charged in Criminal Possession of Marijuana in the Fourth Degree, Criminal Possession of Marijuana in the Fifth Degree, and Unlawful Possession of Marijuana.

34. Plaintiff was required to appear in court on four additional occasions until all charges against plaintiff were dismissed and sealed in their entirety on January 18, 2017.

35. As a result of the false arrest and imprisonment of plaintiff, plaintiff was evicted from his apartment located at 1978 Madison Avenue, Apartment G2, New York, NY, and forced to move into a homeless shelter.

36. As a result of the false arrest and imprisonment of plaintiff, plaintiff missed his son Isal Rivera's high school graduation from Foreign Language Academy of Global Studies High School, which occurred on June 23, 2016.

37. As a result of the unlawful search of plaintiff's apartment by the defendant police officers, plaintiff incurred property damage including damage to his television, shoes, and clothing.

38. As a result of the false arrest and imprisonment of plaintiff, \$3000 was stolen from plaintiff on June 23, 2016 by the defendant police officers and never returned to plaintiff.

39. Since plaintiff was arrested and criminally charged with a drug related offense he was evicted from his apartment located at 1978 Madison Avenue, New York, NY, and was homeless from June 24, 2016 through July 5, 2016.

40. Plaintiff was forced to live in homeless shelters with his family until he was able to move into emergency housing with her family on July 5, 2016, which is not that much better than homeless shelters.

41. Plaintiff and his family lived in the Emergency Housing with other homeless families from July 5, 2016 through June 20, 2017.

42. The entire experience of being evicted from their home, surviving in homeless shelters and then being forced to live in Emergency Housing for almost a year was an emotionally traumatic experience for plaintiff and his family.

43. Moreover, the experience harmed plaintiff economically as well because the Human Resources Administration paid for the emergency housing and has placed a lien against plaintiff for \$39,116.77.

44. The police officers damaged plaintiff's property while they conducted the illegal search of his apartment, including damage to his television, shoes, and clothing which was worth approximately \$2000.

45. Additionally, the defendants unlawfully seized \$1340 in tax refund money from plaintiff's apartment when they conducted the search. The money was not returned to claimant until March 20, 2017, almost a year after the money was seized.

46. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, and false arrest of plaintiff.

47. The unlawful search, false arrest, and false imprisonment, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of his right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

Unlawful Search

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

56. Defendants lacked probable cause to search plaintiff and his apartment.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

Malicious Prosecution

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

60. Defendants commenced and continued a criminal proceeding against plaintiff.

61. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

62. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

63. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

64. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

68. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

69. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

70. In withholding/creating false evidence against plaintiff Angel Garcia-Rivera, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

71. As a result of the foregoing, plaintiff Angel Garcia-Rivera, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true.

DATED: New York, New York
April 13, 2019

/s/
DAVID M. HAZAN